

## 25NNCV05070 25NNCV05070

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-10

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### TENTATIVE RULING

Calendar: 7

Date: July 10, 2026

Case No: 25NNCV05070 Trial Date: August 9, 2027

Case Name: Friedman v. De Saint Didier, et al.

### MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA

[CCP § 1987.1]

Moving Party: Defendants, Elise De Saint Didier and Mathilde De Saint Didier

Responding Party: Plaintiff, Gary Friedman [Unopposed]

### RELIEF REQUESTED:

An order compelling non-party Pain Relief Center Chiropractic Offices to comply with the subpoena Defendants served upon it.

CAUSES OF ACTION: from Complaint

1) Negligence

2) Negligent Entrustment

## SUMMARY OF FACTS:

This action arises out of an alleged motor vehicle collision. The Complaint alleges that on October 24, 2024, Gary Friedman ("Plaintiff") was operating his motorcycle westbound on Ventura Boulevard and approaching the intersection at Laurel Canyon Boulevard. Mathilde De Saint Didier ("Mathilde") was traveling eastbound on Ventura Boulevard and approaching the intersection of Laurel Canyon Boulevard. Plaintiff alleges that by inattention, carelessness and recklessness, Mathilde turned left and struck Plaintiff. The Complaint further alleges that Elise De Saint Didier ("Elise") is the registered owner of the vehicle and knew, or should have known, that Mathilde was incompetent or unfit to drive the vehicle.

## ANALYSIS:

A deposition subpoena may command only the production of business records without attendance at a deposition from a nonparty. (CCP, § 2020.020, subd. (b).) A deposition subpoena that requires only the production of documents "shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item..." (CCP, § 2020.410, subd. (a).) A deposition subpoena for the production of business documents need not be accompanied by an affidavit of good cause and must be directed at the custodian of records or other person qualified to certify those documents. (CCP, § 2020.410, subd. (c).) The responding party must comply with a deposition subpoena on a date that is no earlier than 20 days after the issuance or 15 days after service of the subpoena, whichever is later. (CCP, § 2020.410, subd. (c).)

A deposition subpoena is enforceable under Code of Civil Procedure section 1987.1. (CCP, § 2020.030.) After notice and opportunity to be heard, the Court may issue an order quashing the subpoena entirely, modifying it, or directing compliance with it upon terms and conditions as the Court may declare. (CCP, § 1987.1, subd. (d).) Courts also have the authority to protect the responding person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person. (CCP, § 1987.1, subd. (d).)

A nonparty's failure to comply with a deposition subpoena may be punished for contempt under Chapter 7 (commencing with Section 2023.010) and may be subject to the forfeiture and payment of damages set forth in Section 1992. (CCP, § 2020.240.)

On December 5, 2025, Defendants served a deposition subpoena for production of business records upon non-party Pain Relief Center Chiropractic Offices. (Ex. A.) Defendants assert that Pain Relief Center Chiropractic Offices has failed to comply with the subpoena. (Massey Decl., ¶ 4.) The Court finds that there is good cause to compel the discovery sought. Plaintiff alleges that as a result of the accident, "Plaintiff was hurt and injured in his health, strength, and activity, sustaining injury to his body and shock and injury to his nervous system and person, all of which said injuries have caused, and continue to cause Plaintiff great mental, physical and nervous pain and suffering." (Compl., ¶ 17.) The Complaint further alleges that "Plaintiff was required to, and did, employ doctors, nurses, and therapists to examine, treat and care for him and did incur medical and incidental expenses." (Compl., ¶ 18.) Accordingly, Plaintiff's medical records are relevant and subject to discovery. Moreover, no opposition has been filed, and there are no arguments as to why the motion should not be granted.

The motion is GRANTED.

## Request for Sanctions

"The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (CCP, § 2025.480, subd. (j).)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

Defendants request sanctions in the amount of \$1,310.00. The amount requested is slightly high, given that no opposition or reply was filed. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 3 hours attorney time at \$250.00 per hour for total attorneys fees of \$750.00.

#### RECOMMENDED RULING:

Defendants' Motion to Compel Compliance with Deposition Subpoena for Production of Business Records is GRANTED. Pain Relief Center Chiropractic Offices is ordered to produce documents responsive to the subpoena within 20 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$750.00 (3 hours @ \$250.00/hour) [5.0 hours requested] plus \$60.00 in filing fees [Amount Requested \$1,310.00], which sum is to be awarded in favor of Defendants Elise De Saint Didier and Mathilde De Saint Didier and against Pain Relief Center Chiropractic Offices and payable within 30 days. (CCP, § 2025.480, subd. (j); CRC Rule 3.1348(a).)

Counsel for moving party is ordered to prepare an order for sanctions and submit it on eCourt by noon today in accordance with this order.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

#### VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting [www.lacourt.ca.gov](http://www.lacourt.ca.gov) to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.